ARRANGEMENT OF SECTIONS

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IT is hereby notified that the Minister of Finance, Economic Development and Investment Promotion has, in terms of section 235, as read with section 120, of the Customs and Excise Act [*Chapter 23:02*], made the following regulations:—

Title

(1) These regulations may be cited as the Customs and Excise (Centre Pivots Manufacturers)(Suspension) Regulations, 2025.

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(2) These regulations shall come into effect from 1st January, 2026.

Interpretation

2. In these regulations—

"applicant" means a person applying for registration as a manufacturer of Centre Pivots in terms of these regulations;

"Form" means the appropriate form referred to in the First Schedule;

"goods" means any materials referred to in the Second Schedule used in the manufacturing of Centre Pivots;

"manufacturer" means any person who is registered as a manufacturer of Centre Pivots in terms of section 5.

Completion and use of prescribed forms

3. (1) All forms in terms of these regulations and copies therefore shall be completed indelibly in a legible manner.

(2) The Commissioner may refuse to accept any form if he or she considers that any part of it is illegible and that it has not been properly completed.

Grant of suspension

4. Subject to these regulations, a suspension of duty shall be granted on goods referred to in the Second Schedule, imported or taken out of bond by a registered manufacturer for use in the manufacturing of Centre Pivots.

Registration of manufacturers

5. (1) Only approved manufacturers as listed under the Third Schedule shall be eligible to apply for a suspension in terms of these regulations.

(2) Any person who wishes to claim a suspension of duty in terms of these regulations shall apply to the Commissioner in the appropriate form for registration as a manufacturer of centre pivots.

(3) An application referred in sub section (2) shall be supported by such additional information or documents as the Commissioner may require and shall be made before the importation or removal from bond of any goods intended for the manufacture of centre pivots.

(4) The applicant must be registered with the Zimbabwe Revenue Authority and have a valid tax clearance certificate.

(5) On receipt of an application in terms of this section the proper officer shall, before referring the application for consideration by the Commissioner, inspect the applicant's premises and machinery and report his or her findings to the Commissioner.

(6) If the Commissioner approves the application, he or she shall call on the applicant to—

(a) erect on his premises the stores provided for in section 9; and

(b) enter into a bond an appropriate form, with sufficient surety in an amount determined by the Commissioner, for the securing of duty and compliance with the requirements of these regulations; and

(c) pay the fee referred to in section (6).

(7) When the applicant has complied with the requirements of subsection (5), the Commissioner shall register the applicant.

(8) The fee for registration as a manufacturer shall be the prescribed amount:

Provided that where the registration of an applicant is approved after the 30th of June in any year, the fee shall be half of the fee referred to in this subsection.

(9) The prescribed fee for renewal of registration of a manufacturer shall be payable annually on or before the 31st January.

(10) The Commissioner may reject an application for registration if he or she is of the opinion that—

(a) adequate control of goods imported or taken out of bond under suspension of duty is not likely to be maintained; or

(b) any provision of these regulations will not be complied with.

Storage of duty suspended goods

6. (1) The applicant shall provide on his or her premises secure stores for the safe storage of goods on which duty has been suspended and shall, at his or her own expense, provide the necessary fastenings so that the stores may be secured with customs locks.

(2) No goods on which duty has been suspended may be stored elsewhere than in the stores provided for in subsection (1), and no such store shall, without the prior written permission of the Commissioner, be used for any other purposes.

Clearance of goods

7. (1) Goods to be entered under the suspension of duty provided for in these regulations shall be entered for consumption at the port of entry nearest to the premises of the manufacturer.

(2) A manufacturer shall, when effecting entry on importation or on removal from bond of goods intended for manufacture under suspension, submit with the relevant bill of entry, a declaration signed by him or her, to the effect that the goods are to be used solely in the manufacture of centre pivots.

Manufacturer to keep stock-book

8. (1) A manufacturer shall keep a stock-book, in a form approved by the Commissioner, showing full particulars of all receipts and

disposals of goods entered for the manufacturer of Centre Pivots in such a manner that the suspension goods can readily be accounted for to the satisfaction of the Commissioner.

(2) If a manufacturer fails to keep a stock-book in the manner approved in terms of subsection (1), any suspension goods received by the manufacturer during the period when the stock-book was not so kept shall be deemed to have been used for a purpose other than that for which the suspension was granted unless the manufacturer satisfies the Commissioner that the suspension goods were used for the purpose for which the suspension was granted.

(3) The stock-book and premises of a manufacturer shall be open for inspection by a proper officer at any time.

Disposal of duty suspended goods

9. (1) Subject to subsections (2) and (3), a manufacturer shall not, except with the written authority of the Commissioner, and on payment of the duty suspended, dispose of any suspension goods otherwise than in accordance with these regulations.

(2) The Commissioner may authorise the disposal of suspension goods on payment of such duty, not exceeding the amount of duty suspended, as he or she thinks fit, if in the opinion of the Commissioner, the goods cannot be economically used for the purpose for which they were entered under suspension.

(3) A manufacturer shall, when required by the Commissioner to do so, carry out under the supervision of a proper officer, at such time as the Commissioner may consider necessary, any manufacturing operation in which goods entered under suspension are used.

(4) Duty on suspension goods which are accidentally destroyed before being used in the manufacturer of Centre Pivots may be remitted if the Commissioner is satisfied that every reasonable effort was made and precaution taken to prevent their destruction.

Eligibility of goods for suspension

10. Only the goods listed in the Second Schedule shall be eligible for suspension if imported under the tariff heading indicated opposite thereto.

Cancellation of registration

11. (1) The Commissioner may cancel or suspend the registration of a manufacturer if such manufacturer—

(a) ceases to manufacture centre pivots; or

(b) fails to comply with or contravenes any of the provisions of these regulations; or

(c) fails to pay the fee for the renewal of registration in accordance with subsection (7) of section 5; or

(d) so requests.

(2) If any registration is cancelled in terms of subsection (1), any duty suspended shall immediately become due and payable.

Transparency and accountability in the utilisation of suspension facility

12. (1) A manufacturer shall be required to present to the Minister, an annual report in a form approved by the Minister, showing full particulars of all the benefits achieved in the utilisation of the suspension facility granted in terms of these regulations. The report shall be in such a manner that the effect on the following aspects on the manufacturer's business can be readily ascertained or accounted for to the satisfaction of the Minister—

(a) the incremental employment levels achieved by the manufacturer;

(b) capacity utilisation levels attained from the use of the suspension;

(c) value of new investment received since the implementation of the suspension;

(d) growth in the manufacturer's output; and

(e) research and development initiatives carried out by the manufacturer.

(2) If a manufacturer fails to produce the annual report in the manner approved in terms of subsection (1), the suspension shall be immediately withdrawn and any suspension goods received by the manufacturer during the period when the report was not so produced shall be deemed to have been used for a purpose other than that for which the suspension was granted. The manufacturer shall be required to pay the suspension revenue forthwith and the penalty for failure to keep records.

(3) The annual report by the manufacturer shall be submitted within thirty days from the end of the twelve months period calculated from:

(a) the 1st of January, 2020, in the first year; and

(b) thereafter from the 1st of January every year subsequently.

FIRST SCHEDULE (*Section 3*)

FORMS

Form Titles

Application for registration.

Centre Pivots Manufacturer's Bond.

In terms of section 5(2) of the Interpretation Act [*Chapter 1:01*], these forms are not published in these regulations. They may be inspected free of charge at the offices of the Zimbabwe Revenue Authority, Harare, or at any of the offices of the Zimbabwe Revenue Authority in all the Regions.

SECOND SCHEDULE (*Section 10*)

GOODS ELIGIBLE FOR SUSPENSION

The goods listed below shall be imported under suspension only by manufacturers registered in terms of section 5 and listed in the Third Schedule.

Heading number	Commodity Code	Description of Goods
40.09	4009.22.00	Hoses
40.11	4011.70.90	Pivot Tyres
40.13	4013.90.90	Inner tubes, of rubber
40.16	4016.92.00	Parts of industrial, agricultural or mining machinery, gaskets, washers and other seals, bell drive shaft cover, coupler kits 4 pairs per axle
	4016.93.10	Clamps, rubber seal
70.11	7011.10.00	Wellglass
72.10	7210.11.00	Metal plates
72.14	7214.30.00	Bars
72.15	7215.10.00	Adjusting rod
72.16	7216.10.00	Channels
	7216.50.00	Angle iron
73.01	7301.10.00	Metal sheets
73.06	7306.30.00	Steel pipes
73.07	7307.99.00	Steel elbow/coupling
	7307.99.00	Nozzles
73.08	7308.90.90	Metal sheets
73.12	7312.10.00	Stay wire
73.18	7318.15.00	Bolts
	7318.16.00	Nuts
	7318.22.00	Washers

Heading number	Commodity Code	Description of Goods
73.19	7319.40.00	Towable safety pin
73.26	7326.90.10	Wire rope clamps, turnbuckle
81.01	8101.94.00	Bars
82.01	8201.40.00	Axes, bill hooks and similar hewing tools
83.09	8309.90.00	Riser pipe, collector seal (vj pipe packaging), caps, stoppers
83.11	8311.90.00	Welding rods
84.13	8413.70.00	Centrifugal pumps
	8413.81.00	Pumps
	8413.91.00	Pump parts
84.24	8424.49.00	Twister, nozzles
	8424.90.00	Parts
84.68	8468.20.00	Gas operated machinery / apparatus
	8468.80.00	Other machinery and apparatus
84.81	8481.90.00	Parts
84.82	8482.10.00	Ball bearings
	8482.20.00	Tapered roller bearings, including cone and tapered roller assemblies
	8482.99.00	Parts – other
84.83	8483.20.00	Bearing housings, incorporating ball or roller bearing
	8483.60.00	Hose barb adapter, hose clamps, u bend gooseneck
85.01	8501.10.00	Electric Motors

Heading number	Commodity Code	Description of Goods
85.04	8504.21.10	Earth Rod
85.15	8515.90.00	Parts of Laser cutter and robot welder
85.35	8535.30.00	Insulating switches
85.36	8536.10.00	Fuses
	8536.20.10	Circuit breakers
	8536.41.00	Relays
	8536.70.00	Connectors/lugs
	8536.90.00	Switching apparatus
85.37	8537.20.10	Motor control panels /variable speed drives
	8537.20.90	Tower boxes – other
85.38	8538.90.00	Glands
85.39	8539.49.00	Pivot Lights
85.44	8544.60.10	Wires and cables of copper
87.08	8708.70.20	Rims fitted with tyres
	8708.70.90	Rims
90.26	9026.10.00	For measuring or checking the flow or level of liquids
	9026.20.00	For measuring or checking pressure
90.28	9028.20.00	Water Flow meter
	9028.30.00	Electrical Meter
90.32	9032.89.00	Regulators
94.05	9405.69.00	Illuminated signs, illuminated name-plates and the like

THIRD SCHEDULE (*Section 5*)

APPROVED CENTRE PIVOT MANUFACTURER

The manufacturer below is approved for importation of materials listed in the Second Schedule.

Name of Approved Manufacturer
Maka Resources (Private) Limited